

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

In the matter of an Appeal made
under Section 331 of the Code of
Criminal Procedure Act No.15 of
1979

**Court Appeal Case No.
CA/HCC/0021/2025
High Court of Galle
Case No. 3487/2010**

Ajith Chandana Hewavitharana

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General
Attorney General's Department
Colombo-12

COMPLAINANT-RESPONDENT

**BEFORE : P. Kumararatnam, J.
R. P. Hettiarachchi, J.**

COUNSEL : **Neranjana Jayasinghe with Randunu
Helleage for the Appellant.
Dishna Warnakula, DSG for the
Respondent.**

ARGUED ON : **24/03/2026**

DECIDED ON : **06/07/2026**

JUDGMENT

P. Kumararatnam J

The above-named Accused-Appellant (hereinafter referred to as the Appellant) was indicted by the Attorney General for committing the murder of Medavakandage Chandrapala on or about 06/02/2000 an offence punishable under Section 296 of the Penal Code.

The trial commenced before the High Court Judge of Galle as the Appellant elected for a non-jury trial. The prosecution had called 09 witnesses in person, two witnesses' official duties were admitted under Section 420 of the Code of Criminal Procedure Act, PW1's evidence was marked under Section 33 of the Evidence Ordinance and marked production P1 to P5, and closed

their case. When the defence was called, the Appellant electing to make a statement from the dock, denied the allegation levelled against him.

The Learned Trial Judge, believing the evidence presented by the prosecution, convicted the Appellant on the count of murder and sentenced him to death on 16/10/2024.

Being aggrieved by the aforesaid conviction and sentence, the Appellant preferred this appeal to this court seeking to set aside the conviction and sentence imposed on him.

The Learned Counsel for the Appellant informed this court that the Appellant had given consent to argue this matter in his absence. During the argument he was connected via the Zoom platform from prison.

Background of the case

PW3, Amarasiri, was a neighbour of both the deceased and the Appellant. On the day of the incident he, the deceased and some others had finished their work at about 10.30pm. After having a wash, the deceased had dinner at PW3's house and went to his house wearing a wet sarong. On the next day morning, at about 6.00am PW5, Chandrapala had informed him that the deceased had been electrocuted and was lying fallen in the beetle cultivation of the Appellant. Although there was an access road to the deceased's house, there was a shortcut which existed over the beetle cultivation of the Appellant.

According to PW5, Chandrapala who got married to the sister of the deceased, told court that at about 12 midnight his father-in-law and mother-in-law had come to his house in search of the deceased. When he got ready to go to Martin's house, the Appellant called him and informed that the deceased had been electrocuted and was lying fallen in his beetle cultivation. Further, he had taken him to the spot where the deceased was lying fallen. At that time, he had noticed that the wires had been installed around the Appellant's house. The Appellant had told him to inform the incident to the

police. There was a dispute that had existed between the Appellant and his brother over taking unauthorised power from the Appellant's house.

PW2, Chandra the wife of PW5 also corroborated what her husband told the court. When she went to see the deceased, the Appellant had allowed her to visit the place of incident. He had only allowed PW5 to see the deceased. She too confirmed that wires had been installed around the Appellant's house.

PW7, DIG/Ranasinghe had conducted the investigation when he was the Officer-in-Charge of the Yakkalamulla Police Station. Upon receiving a complaint from PW1, Dayawathie about the death of her son, he had commenced investigation and visited the scene. He had noted that wires had been installed around the house of the Appellant. Additionally, two wire meshes covering the doors of the house too connected electricity from the third room of the Appellant.

This witness had noticed that the deceased was lying fallen among the beetle cultivation only wearing a sarong, and that the deceased had struck on the wire and died. When he searched for the Appellant, he was informed that he had disappeared from his house. This witness had taken all wires and ligaments made of metal and other instrument used to pass electricity as productions in this case.

PW12, the JMO who held the post-mortem opined that the death of the deceased was caused due to electrocution and externally noted two burn marks on the body.

PW1, Dayawathie, the mother of the deceased, whose evidence was admitted under Section 33 of Evidence Ordinance corroborated the evidence given by PW5. PW5 had told her that the Appellant was yelling filth and told him that he would like to go to jail. She had come to know about the death of the deceased from PW5. She confirmed that the Appellant had fortified his house with illegally laid down electric wires and ligaments made of metal.

The Appellant made a dock statement and closed his case. In the dock statement he had denied installing electric wires and ligaments made of metal around his house. Additionally, he had said a dispute had existed between him and his brother regarding his brother taking electricity illegally from his house.

On behalf of the Appellant the following Grounds of Appeal are raised:

1. The High Court Judge had failed to take into consideration that the items of circumstantial evidence are not sufficient to arrive at the one and only inference that the Appellant had committed the offence.
2. The Learned High Court Judge has erred in law in coming to the conclusion that the Appellant had committed an offence punishable under Section 294(4) of the Penal Code.
3. The Learned High Court Judge had rejected the dock statement of the Appellant on unreasonable grounds.

In criminal law, the presumption of innocence is a fundamental principle mandating that the prosecution must establish the guilt of the accused beyond a reasonable doubt.

In the first ground of Appeal, the Learned Counsel for the Appellant contends that the High Court Judge had failed to take into consideration that the items of circumstantial evidence are not sufficient to arrive at the one and only inference that the Appellant had committed the offence.

Circumstantial evidence refers to indirect evidence that would point to a fact or possibility without direct proof. In order to connect the available pieces of information to the conclusion, a logical deduction or inference is necessary. Any inference of guilt reached on the basis of circumstantial evidence must be a necessary and strong inference that points to the accused being the perpetrator of the crime and no one else. As such the chain of events or circumstances being submitted as circumstantial evidence must be complete

and clear. Any such circumstantial evidence must prove the guilt of the accused beyond a reasonable doubt.

In the case of **Jayaratne Bandage Senaka Kumara Herath vs. The Hon. Attorney General** [SC/APPEAL/118/2022] decided on 16. 05. 2025 it was noted:

“When considering a case on circumstantial evidence, Court has to bear in mind that the prosecution must prove beyond reasonable doubt that the circumstantial evidence led at the trial must only be consistent with the guilt of the appellant and not with any other hypothesis.”

In the case of **Junaiden Mohamed Haaris v Hon. Attorney General** (SC Appeal 118-2017) decided on 9.11.2018 it was held as follows, regarding circumstantial evidence:

“The two basic principles are-

1) The inference sought to be drawn must be consistent with all the proved facts, if it is not, then the inference cannot be drawn.

2) The proved facts should be such that they exclude every reasonable inference from them, save the one to be drawn. If they do not exclude other reasonable inferences, then there must be a doubt whether the inference sought to be drawn is correct (per Watermeyer J. in R v Blom 1939 A.D. 188)

The rule regarding the exclusion of every hypothesis of innocence before drawing the inference of guilt was laid down way back in 1838 in the case of R vs Hodges 1838 2 Lew, cc.227). The circumstances must be such as to produce moral certainty to the exclusion of every reasonable doubt.”

In the case of **Dissanayake Appuhamilage Amarasiri Dissanayake v. Attorney General**, SC Appeal 232/14, (2017) (Decided on 11.07.2017) it was noted:

“I am mindful of the fact that where a case rests squarely on circumstantial evidence, the inference of guilt can be justified only when all the incriminating facts and circumstances are found to be incompatible with the innocence of the accused or the guilt of any other person.

The circumstances from which an inference as to the guilt of the accused is drawn have to be proved beyond reasonable doubt and have to be shown to be closely connected with the principal fact sought to be inferred from those circumstances.”

Assessing evidence in a criminal trial is a vital task for a judge. Evidence may take different forms, including testimonies, documents, physical items, or digital records. However, not all evidence carries the same level of reliability, relevance, or persuasiveness. To evaluate the quality and weight of evidence, the presiding judge must employ critical thinking skills and take into account several factors such as credibility, consistency, adequacy, standard, relevance, and strength of the prosecution's case.

According to PW5, PW2 and PW1, they got to know the incident at about 12.30am. When they came to the Appellant's house, the Appellant only informed about the incident to PW5 and had shown the place where the deceased was lying fallen. He had not allowed the others to see the deceased. Although, the incident had happened in his premises, the Appellant had not taken any endeavour to inform about the incident to the police or to dispatch the deceased to the hospital. Instead, he had disappeared from the scene until he was arrested by the police on the following day. According to PW2, the Appellant had not allowed them to take the deceased to a hospital or to see him at that time.

According to the evidence, no dispute had existed between the deceased and the Appellant. A dispute had existed between the Appellant and his brother, regarding taking power illegally. The investigating officer had very clearly observed as to how the Appellant had fortified his house with electricity using wires and ligaments made of metal. This clearly shows that the Appellant had knowingly installed electricity around his house.

In the second ground of appeal, the Learned Counsel contended that the Learned High Court Judge has erred in law in coming to the conclusion that the Appellant had committed an offence punishable under Section 294(4) of the Penal Code.

294. Except in the cases hereinafter excepted, culpable homicide is murder-

Firstly- if the act by which the death is caused is done with the intention of causing death; or

Secondly- If it is done with the intention of causing such bodily injury as the offender knows to be likely to cause the death of the person to whom the harm is caused; or

Thirdly- If it is done with the intention of causing bodily injury to any person, and the bodily injury intended to be inflicted is sufficient in the ordinary course of nature to cause death; or

Fourthly- If the person committing the act knows that it is so imminently dangerous that it must in all probability cause death, or such bodily injury as is likely to cause death, and commits such act without any excuse for incurring the risk of causing death or such injury as aforesaid.

In this regard the illustration (d) to Section 294 is very important. The said illustration is reproduced below:

(d) A, without any excuse, fires a loaded gun into a crowd of persons and kills one of them. A is guilty of murder, although he may not have had a premeditated design to kill any particular individual.

In **Chandrasena alias Rale v Attorney General** [2008] 2 SLR 255 the court held that:

(4) The victim in the instant case died due to septicaemia following infected ulcers, infected ulcers caused as a result of the burns infected by an act of the appellant - there is direct nexus between the burns and the cause of death. In a case of murder even if the death of the victim was not directly due to the injuries inflicted by the accused but due to other conditions such as septicaemia occurred a result of the injuries inflicted by the accused, it is justifiable to conclude and should conclude that it was the act of the accused that caused the death of the victim.

Per *Sisira de Abrew, J.*

"The victim was in her boutique at the time of the incident. The prosecution case was that the appellant threw an object like a bottle. Immediately thereafter the victim was in flames and the boutique was engulfed in flames. Thus, the appellant knew that it was imminently dangerous that it must in all probability cause death of the inmates of the boutique by his act and bodily injuries have been caused to the victim which were not only likely to cause death but are sufficient in the ordinary course of nature to cause death. This act was done by the appellant without any excuse. Thus, in my view the appellant was guilty of murder under the fourth limb of Section 294."

The Learned Counsel for the Appellant strenuously argued that since there was no enmity reported, the Appellant had no intention or knowledge to commit the murder of the deceased. The Learned Counsel further argued that there was no necessity for the deceased to walk through the Appellant's beetle cultivation at the night. Hence, he argued that the Appellant had no intention of committing the murder of the deceased.

PW2 had revealed that there was a short cut used by the Appellant and the deceased as they were neighbours. Hence, it is not unusual for the deceased

to use that shortcut. The Appellant had not denied the existence of a short cut. Therefore, the Appellant ought to have been conscious of the people who use the said shortcut.

In **Somapala v The Queen** 72 NLR 212 the Court observed:

“Knowledge that an act is so imminently dangerous that it must in all probability cause death or such bodily injury as is likely to cause death, is knowledge, not merely of the likelihood of causing death, but of the high probability of causing death or injury likely to cause death; so that many case which fall within the third clause of section 293 will not be murder within the meaning of the fourth limb of section 294”.

H.N.G. Fernando C.J. quoted with approval the following sentence from an Indian judgment;

“If death is a likely result, it is culpable homicide: if it is the most probable result, it is murder.”

In **King v Rengasamy** 25 NLR 444 Bertram C.J said:

Dr. Gour expresses the opinion that though the enactment was designed to meet this particular class of case, its application ought not necessarily to be confined thereto, and instances the case of a mother exposing her infant child as a case to which the words of the enactment appropriately extend. I quite agree. Another case which has recently come within my own experience, and to which the words of the enactment appropriately apply, is that of a man, who without any definite intention to injure, but out of pure bravado and insolence discharges a gun in the direction of a man with whom he is engaged in altercation.”

The learned High Court Judge in her judgement at pages 327-328 states:

කෙසේ වුවද දණ්ඩ නීති සංග්‍රහයේ 294 වන වගන්තියේ හතරවන අවස්ථාව ලෙස සටහන් වන්නේ තමා විසින් සිදු කරන ලද ක්‍රියාව මගින් සිදු විය හැකි අන්තරාය කොපමණ ආසන්නද කිවහොත් එම ක්‍රියාවේ ප්‍රතිඵලයක් ලෙස සෑම අතින්ම මරණයක් සිදු විය හැකි බවට හෝ මරණය සිදු විය

හැකි ශාරීරික පාඩුවක් විය හැකි බවට දැන දැනම සිදු කරන ලද ක්‍රියාවක් සම්බන්ධයෙන් වන අතර පෙර මෙම නින්දාවේ සටහන් කරන ආකාරයටම ඉතාම ප්‍රවේසම් සහගතව සුක්ෂ්ම තමාගේ නිවස වටේට වූදින විසින් විදුලිය සම්බන්ධ කළ හැකි වයර් සහ කම්බි ඇද නිවස තුළින් එම වයර් සහ කම්බි වලට රාත්‍රී කාලයේ දී විදුලිය සම්බන්ධ කිරීම යන ක්‍රියාවලිය සලකා බැලීමේ දී එම විදුලිය සම්බන්ධ වී ඇති වයර් හෝ කම්බි වල හෝ ස්පර්ශ වන පුද්ගලයෙකුට විය හැකි එකම ප්‍රතිඵලය වන්නේ මරණය බවට වූදින පැහැදිලිවම දැන සිටිය යුතුව ඇති බවට මෙම අධිකරණය නිරීක්ෂණය කරනු ලබන අතර තමාගේ එම ක්‍රියාවේ අන්තරාදායක තත්ත්වය නොතේරෙන ආකාරයේ මානසික තත්ත්වයකින් හෙබි පුද්ගලයෙකු ලෙස වූදිනව හඳුනා ගැනීමක් සිදු කළ නොහැකි තත්ත්වය යටතේ මෙන්ම විශේෂයෙන්ම නිවසට අතුල් විය හැකි ඉදිරි සහ පසුපස දොරවල් වලට වෙනම දැල් ගසා එම දැල් වලට ද විදුලිය සම්බන්ධ කර තිබීම තරම් ඉතා අන්තරාදායක ක්‍රියාවලියක් වූදින විසින් සිදු කර ඇති තත්ත්වය යටතේ වූදිනගේ ඉහත දක්වන ලද විදුලිය සම්බන්ධ කිරීමේ ක්‍රියාවලිය මගින් මෙම නඩුවට අදාළ මරණකරුගේ මරණය සිදු වී ඇති බවට මෙම අධිකරණයට කිසිදු ගැටළුවකින් තොරව තීරණය කිරීමට හැකියාවක් ඇති අතර එලෙස විදුලිය සම්බන්ධ කිරීමට සාධාරණ කිසිදු හේතුවක් තමාට තිබූ බවට පෙන්වා දීමට වූදිනට කිසිදු හැකියාවක් ලැබී නොමැති තත්ත්වය යටතේ වූදින විසින් කරන ලද විදුලිය සම්බන්ධ කිරීමේ ක්‍රියාව මගින් මෙම නඩුවේ මරණකරුගේ මරණය සිදුවීම මිනීමැරීමක් බවට තීරණය කරන බවට සටහන් කරමි.

Considering the brutality of the offence, the gravity, as well as the seriousness of injuries sustained by the deceased, I conclude that the Learned High Court Judge had very correctly considered the liability under the fourth limb of the Section 294 of the Penal Code.

In the final ground of appeal, it was contended that, the Learned High Court Judge had rejected the dock statement of the Appellant on unreasonable grounds. Appreciation of the contents of a dock statement is considered in number of cases by our court.

A dock statement refers to an unsworn statement made by an accused from the courtroom dock rather than giving sworn testimony. The evaluation of such statements would be extremely important, as they would be legally considered to be evidence, and as such, must be carefully assessed to protect the defendant's right to a fair trial. Therefore, although a dock statement would lack the full probative weight as cross-examined evidence would, it still remains important to the case at hand. Further, even if the statement is

not fully believed, if its content is sufficient to create a reasonable doubt regarding the prosecution's case in the perspective of the jury or judge, the accused would then legally be entitled to an acquittal.

In **Queen V. Kularatne** 71 NLR 529 at page 531 it was held that:-

“when an unsworn statement is made by the accused from the dock, the jurors must be informed that such statement must be looked upon as evidence, subject however to the infirmity that the accused had deliberately refrained from giving sworn testimony. But the jury must also be directed that,

- (a) if they believe the unsworn statement, it must be acted upon,*
- (b) if it raises a reasonable doubt in their minds about the case for the prosecution, the defence must succeed, and*
- (c) that it should not be used against another accused.”*

In the case of **Sarath v. Attorney General** [2006] 3 SLR 1:

“There is no rule that particular item/evidence should be considered first in the judgment. There is no prescribed sequence in analysing evidence. The judgment analysed the entire evidence at the same time. Therefore, the fact of considering the dock statement at the beginning of the judgment would not make any difference as the prosecution evidence was considered at the same time.

One must bear in mind that when a dock statement is considered anywhere in the judgment, the judge who heard the evidence is aware of the prosecution case and would always consider the dock statement while considering the prosecution story. One cannot consider the dock statement in isolation”.

In this case, the Learned High Court Judge had very correctly considered the dock statement of the Appellant in her judgment. She has also given reasons as to why she disregards the same in her judgment. Hence, it is incorrect to say that the Learned High Court Judge had not considered the dock statement of the Appellant in her judgment.

Considering all the evidence presented against the Appellant, I conclude that the prosecution had succeeded in adducing highly incriminating evidence against the Appellant and thereby has established the charge beyond a reasonable doubt. As such we conclude that this is not an appropriate case in which to interfere with the findings of the Learned High Court Judge of Galle dated 16/10/2024. Hence, I dismiss the Appeal.

The Registrar of this Court is directed to send this judgement to the High Court of Galle along with the original case record.

JUDGE OF THE COURT OF APPEAL

R. P. Hettiarachchi, J.

I agree.

JUDGE OF THE COURT OF APPEAL